

Fair Trial and Role of District Judge

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Congratulations and Best wishes
on your new position
Hon'ble District Judge !!!

Introduction

- Fair trial is the foundation of a justice system and rule of law
- **not merely a procedural requirement** but a **substantive guarantee that ensures justice is done** (seen to be done)
- Fair process is as important as correct outcome - even a legally correct decision may lose legitimacy
- A fair trial strengthens public confidence in the judiciary- Trial courts are the first and most decisive forum for fair trial
- Evolving ideas/challenges- application of IT/MLA in court procedures

Concept of Fair Trial

- **Just, fair (impartial and transparent) and reasonable**
- **Due Process of law (substantive+ procedural)**
- Fair trial is not a theoretical concept but a practical obligation of ensuring justice- **Article 126** (Constitution, law and recognized principles of justice)

Natural Justice

- *Audi Alteram Partem*(Hear the other side)
 - No person should be condemned without being heard
 - Right to prior notice of the case
 - Right to adequate opportunity to present one's case
 - Right to present evidence and rebut opposing evidence
 - Right to cross-examine witnesses (where applicable)

- *Nemo Judex in Causa Sua* (No one should be a judge in his own cause)
 - Decision-maker must be impartial
 - Bias is against fair trials
 - Includes:
 - Personal bias
 - Pecuniary bias
 - Subject-matter bias
 - Official or institutional bias
 - Actual bias v. **reasonable apprehension** of bias

- Reasoned Decision (Speaking Order) (*Often treated as a modern principle*)
 - Decision must disclose reasons
 - Shows application of mind
 - Enables appellate review
 - Promotes transparency and accountability

Content

- Right to be heard (*audi alteram partem*)
- Right to an independent and impartial judge
- Adequate time and facilities to prepare the case
- Right to legal representation
- Opportunity to present evidence and cross-examine witnesses
- Reasoned and speaking judgment
- Timely disposal—delay can amount to injustice
- Enforcement of judgment

Context

- International standards:
- UDHR Article 10 (Philosophical foundation)
- ICCPR Article 14 (Operational standards)
- **Key elements**

cont.

Key Component of ICCPR Art 14

- Equality before courts and tribunals
- Fair and public hearing
- Competent, independent, and impartial tribunal
- Presumption of innocence
- Right to be informed promptly of charges
- Adequate time and facilities to prepare a defence
- Right to legal assistance
- Right to examine witnesses
- Right to free interpretation if needed
- Right not to be compelled to confess guilt
- Right to review by a higher tribunal

- **Basic Principles on the Independence of the Judiciary, 1985**

(endorsed by **UN** General Assembly Resolution 40/146):

- There shall not be any *inappropriate or unwarranted (unnecessary) interference* with the *judicial process*.
- The judiciary shall decide matters before them *impartially, on the basis of facts and in accordance with the law*.
- Everyone shall have the *right to be tried by ordinary courts or tribunals using established legal procedures*.
- - Judiciary has to ensure *that judicial proceedings are conducted fairly and that the rights of the parties are respected*.
- - It is ***duty of each Member State to respect and observe the independence of the judiciary***; provide *adequate resources* to enable the judiciary to properly perform its functions.

Constitutional and Legal Framework

- Constitutional guarantees of the right to justice and fair hearing as a fundamental right.
 - Article 20 (8)(9) Applicable not only on criminal charges but civil and administrative proceedings
 - Preamble: independent, fair and competent judiciary
 - Part 11 of the constitution on Judiciary:
 - constitutional commitments to translated fair trial into reality
- cont.

Legal Framework

- Procedural Codes, Court rules and other laws further operationalize this right through various rules on judicial proceedings such as submission of evidence, hearing and appeal procedures.
 - **Criminal procedure:** no crime without law, retroactive law, presumption of innocence, double jeopardy, rights against self-incrimination etc.
 - **Civil procedure:** hearing of parties, due process
 - **Evidence laws:** submission, examination and evaluation of evidence, Judicial discretion must align with fair trial principles
- **Procedure is a justice safeguard, not a technical obstacle**

Supreme Court on Fair Trial

- Violation of natural justice
- Proper notice/summon
- Violation of procedures
- Equality of parties
- Judicial mind
- Denial of rebut of adverse evidence
- Bias—actual or likelihood
- restraining application of inherent power of judiciary violates Fair trial

सन्तोष कुमार महतो वि. भष्टाचार नियन्त्रण शाही आयोग समेत, ने.का.प.२०६२, अंक ११, पृ. १३०७

- छानबिन गर्ने, कारबाही गर्ने र सजाय गर्ने समेतको कार्य एउटै निकायलाई तोक्दा निस्पक्षता र स्वच्छता कायम हुन नसक्ने कारण भष्टाचार नियन्त्रण शाही आयोगको खारेज हुने

डा. पुष्करराज पाण्डे वि सविना पाण्डे मुद्दा अंश नि.नं. ८५७२

- विदेशको अदालतबाट भएको फैसलाले मान्यता पाउन मुद्दाको कारबाहीमा प्रतिवादी बनाइएको व्यक्तिको प्रभावकारी उपस्थितिको अवसर महत्वपूर्ण हुन्छ । मुद्दाको कारबाहीमा विभिन्न बाह्य कारणले गर्दा उपस्थिति सम्भव नभएको कारण भएको फैसलालाई Fair Trial मानिदैन र त्यस्तो फैसलाले मान्यता नपाउने ।
- महंगो अदालती कारबाही, अपरिचित कार्यविधि र आफ्नो विरुद्धको मुद्दामा आफ्नो उपस्थिति र आफ्नो जिकीर प्रमाणित गर्न साक्षी प्रमाण नै उपस्थित गराउन नसकिने कारबाहीलाई Fair Trial मानिदैन भने Fair Trial नभएको फैसलालाई मान्यता प्रदान गर्न नसकिने ।

तारादेवी ढकाल वि. काठमाडौं जिल्ला अदालत समेत

- देवानी कार्यविधि संहिता बमोजिम प्रारम्भिक सुनुवाई पश्चात् थप प्रमाण फेला परेकोमा विचाराधीन मुद्दामा थप प्रमाण ग्रहण नगर्नु स्वच्छ सुनुवाईको मान्यता विपरित हुने ।

Challenges: Actual vs. perceived

- Caseload and time limit/delay
- Procedural requirements
- Insufficient physical infrastructure and human resource
- Weak case management capacity i.e. DCM
- Lack of professionalism/coordination of/with Bar; i.e. adjournments and delay tactics
- Poor investigation/prosecution/pleadings
- Unrepresented or poorly represented litigants
- Language barriers and witness management issues
- External pressure, public expectation and extra-judicious consideration

Role of Trial Court Judge

Primary guardian of fair trial rights

- Application of law, precedents and rule of procedures
- Ensure equality between parties
- Ensure proper notice and meaningful hearing
- Every case vis-à-vis order and hearing matters
- Maintain neutrality and courtroom decorum
- Prevent abuse of power/process
- Active but impartial case management
- Deliver clear, reasoned, and evidence-based judgments
- Judicial behavior: humility, Politeness, Patience, Respectful,
- **Public trust and confidence largely depends on trial judge conduct**

Final Remarks

- Fair trial is the backbone of the rule of law
- Trial court shapes the case vis-à-vis fair trial
- Constitution, Laws and precedents gives the rule not the wisdom that requires to ensure justice
- Commitment to fair trial is a constitutional, professional, and moral obligation not a pleasure .

Thank you.